THE ANAND MARRIAGE ACT, 1909

ARRANGEMENT OF SECTIONS

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THE ANAND MARRIAGE ACT, 1909

ACT NO. 7 OF 1909[1]

[22*nd October*, 1909.]

An Act to remove doubts as to the validity of the marriage ceremony common among the Sikhs called Anand.

WHEREAS it expedient to remove any doubts as to the validity of the marriage ceremony common among the Sikhs called Anand; it is hereby enacted as follows:—

1. Short title and extent.—(*1*) This Act may be called the Anand Marriage Act, 1909; and.

(*2*) Its extends to the whole of India [2]***.

2. Validity of Anand marriages.—All marriages which may be or may have been duly solemnized according to the Sikh marriage ceremony called Anand [3][(commonly known as Anand Karaj)] shall be, and shall be deemed to have been with effect from the date Of the solemnization or each respectively, good and valid in law.

3. Exemption of certain marraiges from Act.—Nothing in this Act shall apply to—

(*a*) any marriage between persons not professing the Sikh religion, or

(*b*) any marriage which has been judically declared to be null and void.

4. Saving of marriages solemnized according to other ceremonies.—Nothing in this Act shall affect the validity of any marriage duly solemnized according to any other marriage ceremony customary among the Sikhs.

5. Non-validation of marriages within prohibited degrees.—Nothing in this Act shall be deemed to validate any marriage between persons who are related to each other in any degree of consanguinity or effinity which would, according to the customary law of the Sikhs, render a marriage between them illegal.

[4][**6. Registration of marriages.—**(*1*) For the purposes of facilitation of proof of marriage ceremony (commonly known as Anand Karaj) customary among the Sikhs, the State Government shall, without prejudice to anything contained in the Hindu Marriage Act, 1955 (25 of 1955) or any other law for the time being in force, make rules providing that the parties to any such marriage [whether solemnized before or after the commencement of the Anand Marriage (Amendment) Act, 2012], may have the particulars relating to their marriage entered, in such manner and subject to such conditions as may be provided in the said rules, in a Marriage Register kept by such officer of the State Government or of a local authority authorised by the State Government, by notification in the Official Gazette, in this behalf.

(*2*) The Marriage Register shall, at all reasonable times, be open for inspection, and shall be admissible as evidence of the statements contained therein and certified extracts therefrom shall, on an application, be given by the Registrar to the parties to the marriage on payment of such fees as may be provided in the rules.

(*3*) Notwithstanding anything contained in this section, the validity of any Anand Marriage solemnized shall in no way be affected by the omission to make an entry in the Marriage Register.

(*4*) Every rule made by the State Government under this section shall be laid before the State Legislature, as soon as may be, after they are made.

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1. The Act has extended to Dadra and Nagar Haveli by Reg. 6 of 1963, s. 2 and first Schedule (w.e.f. 1-7-1965).
2. The words "except the State of Jammu and Kashmir" omitted by Act 34 of 2019, s. 95 and the Fifth Schedule (w.e.f. 31-10- 2019).
3. Ins. by Act 29 of 2012, s. 2 (w.e.f. 1-11-2013).
4. Ins. by s. 3, *ibid.* (w.e.f. 1-11-2013).

(*5*) The parties to the marriage, whose marriage has been registered under this Act, shall not be required to get their marriage registered under any other law for the time being in force (including State Act).]

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